

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Criminal Appeal No. 7367 of 2021

Mahmuda Silvi Khan alias Liza
.....Convict-appellant.

-VERSUS-

The State
..... Respondent.

With

Criminal Appeal No. 6433 of 2021

Md. Mojammel Haque
.....Convict-appellant.

-VERSUS-

The State
..... Respondent.

Present:
Mr. Justice Mamnoon Rahman

Ms. Towfika Karim, Adv. with
Mr. Shahria Kabir Biplob, Adv.
..... For the appellant
(In Crl. Appeal No. 7367 of 2021)

Ms. Tanzima tul Mowla, Adv.
...For the appellant
(In Crl. Appeal No. 6433 of 2021)

Mr. Md. Taifoor Kabir, DAG with
Mr. Md. Lokman Hossain, AAG
Mr. Md. Hatem Ali, AAG
..... For the State.

Heard and Judgment on: 14.11. 2023

Both the appeals were heard together and now disposed of by a common judgment as they do involve in similar question of law and facts though the parties are not same.

In Criminal Appeal No. 7367 of 2021

This appeal is directed against the judgment and order of conviction and sentence dated 31.08.2021 passed by the learned Additional Metropolitan Sessions Judge, Court No. 3, Dhaka in Metro

Sessions Case No. 3845 of 2021 arising out of Banani Police Station Case No. 20(8) 19 (G.R. No. 258/19) convicting the appellant under section 36(1) Table 24(Kha)/41 of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ২০১৮ and sentencing her to suffer 4(four) years and to pay a fine of Tk. 10,000/- (Ten thousand) in default to suffer rigorous imprisonment for six months more.

In Criminal Appeal No. 6433 of 2021

This appeal is directed against the judgment and order of conviction and sentence dated 31.08.2021 passed by the learned Additional Metropolitan Sessions Judge, Court No. 3, Dhaka in Metro Sessions Case No. 3845 of 2021 arising out of Banani Police Station Case No. 20 dated 24.08.2019 convicting the appellant and others under Table 24(Kha) of section 36(1)/41 of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ২০১৮ and sentencing him to suffer 4(four) years and to pay a fine of Tk. 10,000/-(Ten thousand) in default to suffer rigorous imprisonment for six months more.

The prosecution case in both the appeals, in short, are that, one Monir Hossain Sub-inspector of Police lodged a First Information Report on 24.08.2019 with the Banani Police Station against 8(eight) accused persons including the appellants under section 36(1) Table 24(Kha)/41 of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ২০১৮ alleging *inter-alia* that on secret information they went to the place of occurrence and arrested the accused persons including the appellants for possessing 8 bottles of foreign wine and 18 cans of Beer. The police after investigation

submitted charge sheet being No. 325 dated 31st October, 2019 against all the accused persons. Eventually, as the case was ready for trial the same was transmitted to the court of Sessions Judge, Dhaka and ultimately trial was held by the Additional Sessions Judge, 3rd Court, Dhaka. It appears that during trial the prosecution adduced as many as 6(six) witnesses. The trial court proceeded with the trial and examined the accused persons under section 342 of the Code of Criminal Procedure and ultimately handed down the conviction and sentence, vide the impugned judgment and order. Being aggrieved by and highly dissatisfied with the aforesaid judgment and order the present appellants moved before this court by way of appeals.

Ms. Towfika Karim, the learned counsel appearing along with Mr. Sharia Kabir Biplob the learned counsel on behalf of the appellant submit that the court below without applying its judicial mind and without considering the facts and circumstances, most illegally and in an arbitrary manner passed the impugned judgment and order of conviction and sentence which requires interference by this court. She submits that admittedly the appellant in Criminal appeal No. 7367 of 021 was a visiting guest in the premises and she has been falsely implicated in the offence as alleged without any credible evidence nor she had any constructive possession of the incriminating articles. She further submits that the prosecution miserably failed to prove the case by any credible and independent witnesses as much as though the prosecution examined P.W. 3 who is the seizure list witness but he is

the mere caretaker of the building in question and he was not also properly cross-examined. She further submits that the P.W. 4 is also the guard of the said house and he deposed under the pressure of the prosecution side as such the same cannot be taken into consideration for which the same is liable to be set aside for ends of justice.

Ms. Tanzima tul Mowla, the learned Advocate for the appellant in Criminal Appeal No. 6433 of 2021 adopted the submissions as made by the appellant in Criminal Appeal No. 7367 of 2021.

Mr. Mohammad Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the respondent-state vehemently opposes the appeals. He submits that courts below on proper appreciation of the facts and circumstances, materials on record, evidence both oral and documentary passed the impugned judgment and order passed by the courts below which requires no interference by this court.

I have heard the learned Advocates for the appellants as well as the learned Deputy Attorney General for the state. I have perused the impugned judgment and order of conviction and sentence passed by the court below, respective Memorandum of appeals as well as Lower Court Records.

On perusal of the same, it transpires that the appellants along with others stood charge for the offence committed under section 36(1) Table 24(Kha)/41 of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ২০১৮. It transpires that one Monir Hossain who is the Sub-inspector of Banani Police

Station lodged First Information Report (FIR) with the Banani Police Station, Dhaka on 24th August, 2019 against eight accused persons including the appellants alleging *inter-alia* that on secret information he along with his team conducted a raid in Flat No. B5 of House No. 9, Road No. 7, Banani Residential Area and recovered 8(eight) bottles of foreign liquor and 18(eighteen) cans of Beer from the exclusive possession of the accused persons including the appellants and hence the case. The police after investigation submitted charge sheet being No. 325 dated 31st October, 2019 against the accused persons including the appellants. Eventually, the case was transmitted in the court of Additional Sessions Judge, 3rd Court, Dhaka being Metropolitan Sessions Case No. 3845 of 2021 wherein the court below proceeded with the trial. During trial the prosecution examined as many as 6(six) witnesses and the defence adduced none. After conclusion of trial the court below passed the impugned judgment and order of conviction and sentence.

On meticulous perusal of the evidence, it transpires that the prosecution examined as many as 6(six) witnesses. P.W. 1 is the informant who stated in his examination-in-chief that he recovered the incriminating articles from the place of occurrence. P.W. 2 is a police personnel and a formal witness. P.W. 3 is the caretaker of the house who stated that the police arrested the persons and recovered the incriminating articles. P.W. 4 is also the guard of the said house who stated that the police recovered the incriminating articles. P.W. 5 is

the member of the raiding party. P.W. 6 is the investigation officer who submitted charge sheet.

So, on meticulous perusal of the aforesaid evidences, it transpires that apart from the police personnel the prosecution examined two witnesses namely P.Ws. 3 and 4 who are the caretaker and guard of the said house. It is crystal clear that they are the low paid poor employees and they cannot be termed as independent witnesses because of their nature of job and other aspects. There is every chance to be influenced by the police as much as it transpires that the member of the raiding party was not properly examined in the case in hand. It also transpires that the trial court convicted the appellants and other accused persons under section 36(1) Table 24(Kha)/41 of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ২০১৮. It further appears that the trial court discussed the evidence and came to a conclusion that the witnesses were not cross-examined because of the absence of the accused persons.

It also transpires that the trial court while adjudicating the case in hand came to a conclusion as per section 134 of the Evidence Act the court can convict a person on the basis of a sole witness but the cardinal principle of law is that the same has to be an independent and capable of applying his independent mind. But in the present case in hand, it transpires that both the seizure list witnesses are mere employees of the house in question and every chance of being influenced by the police out of fear and as such it is difficult to accept

the contention that they are independent and credible evidence to warrant of conviction and sentence in a case. Also in the present case in hand the prosecution failed to prove the exclusive and constructive possession over the incriminating articles by the accused persons which also creates serious doubt in the prosecution case. Apart from that the main contention of the prosecution is that the appellant and the convict persons are trader of narcotics and they were apprehended at the time of sale or trading of the same. But it appears that as per the prosecution case that they were arrested from a residential flat which creates serious doubt in the manner as stated in the prosecution case in hand. Apart from that though the convict persons were apprehended from an exclusive premises namely a flat in a residential building but the prosecution failed to prove the ownership of the same which also creates serious doubt regarding the question of constructive and exclusive possession over the incriminating articles as admittedly the appellant in Criminal Appeal No. 7367 of 2021 was a mere visitor of the place of occurrence. Also it appears that the trial court applied section 41 of the Narcotics Control Act, 2018 but nowhere in the evidence it has been ascertained that all the accused persons are correlated regarding the possession and/or sale of the incriminating articles. It has been mentioned earlier that for punishing under the aforesaid provisions of law the constructive and exclusive possession of the accused person over the incriminating articles has to be proved beyond all reasonable doubt and such possession has to be determined

by independent and credible evidence. But on perusal of the evidence, it clearly transpires that the seizure list witnesses were mere caretaker and guard of the house and their nature of job as mentioned earlier clearly shows that they cannot take any independent decision or apply their independent mind and as such though they were cited as seizure list witnesses but in the absence of any other credible and material evidence it cannot be said that the convicts including the appellants committed the offence as alleged. Hence, I find substance in both the instant appeals.

Considering the facts and circumstances, I find substance in both the appeals. Accordingly, both the appeals are allowed. The impugned judgments and orders of convictions and sentences passed by the trial court are hereby set aside. The appellants are discharged from their bail bonds and the appellants are acquitted from the charge leveled against them.

Send down the Lower Court Records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman, J:)

Emdad.B.O.